

PROCEEDINGS OF THE DIRECTOR OF INCOME TAX (EXEMPTIONS) : HYDERABAD

J.K. HOTA, I.R.S.,
Director of Income Tax (Exemptions)

F.No. DIT(E)/HYD/12A/18(11)/08-09

Dated 19.02.2009

SUB: Registration u/s.12AA of the I.T. Act, 1961 in the case of **The Plant Protection Association of India, National Bureau of Plant Genetic Resources Regional Station, Rajendranagar, Hyderabad 500 030**– Grant of – Orders – Issue of – Reg.

REF: Application in Form No.10A filed on 11.11.2008 by the said Trust/Assn./Instn.

ORDER U/S.12AA(1)(B)(I) OF THE INCOME TAX ACT, 1961

1. As constituted by the Trust Deed/Memorandum or Articles of Association dt. 04.12.1972, the Trust/Institution has filed an application in Form No.10A for Registration u/s. 12A(a) of the I.T. Act on 11.11.2008. The reasons for delay in filing the application could not be explained.
2. Accordingly, the said trust is hereby registered in the register meant for applications in Form No.10A vide F.No. **DIT(E)/HYD/12A/18(11)/08-09**. This registration is granted **with effect from F.Y. 2008-09**.
3. This registration is subject to the fulfillment of the conditions laid down u/s.12A (a) of the I.T. Act, 1961
4. The registration does not ipso facto exempt the income unless the provisions of Sections 11 and 12 of the I.T. Act, 1961 are adhered to.
5. This registration may be cancelled in terms of the provisions of Section 12AA(3) if at any stage it is found that the activities of the applicant trust/institution are not genuine or are not being carried out in accordance with the objects of the trust/institution.
6. The applicant shall comply with the provisions of Section 139(4A).

J.K. Hota

(J.K. HOTA)
Director of Income Tax (Exemptions)
Hyderabad

Copy to

The Plant Protection Association of India,
National Bureau of Plant Genetic
Resources Regional Station,
Rajendranagar,
Hyderabad – 500 030.

Copy to the DDIT (E), Hyderabad.



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PROCEEDINGS OF THE DIRECTOR OF INCOME TAX (EXEMPTIONS) : HYDERABAD

J.K. HOTA, I.R.S.,
Director of Income Tax (Exemptions)

F.No. DIT (E)/HYD/80G/34(3)/08-09

Dated: 28.05. 2009.

SUB: Granting of an approval or for continuance thereof to an Institution or a fund (referred to u/s. 80G(2) & (5) of the I.T. Act, 1961) – Reg.

REF: The application in Form No.10G filed by **The Plant Protection Association of India, NBPGR, Regional Station, Rajendra nagar, Hyderabad -500 030.**

APPROVAL U/S.80G(5)(vi) OF THE INCOME TAX ACT, 1961

The application filed in Form No.10G seeking approval in the above case on 09-03-2009, has been examined and I am satisfied that:

- (i) This is a fund/trust as mentioned in clause (iv) of sub-section 2 of Sec.80G of the I.T. Act, 1961;
- (ii) The donations made to the said trust/fund/society do qualify for deduction in computing the income of a person who makes the donation i.e. in the hands of the donor.

Accordingly the approval sought for is hereby accorded u/s.80G(5)(vi) of the I.T.Act, 1961.

2. The approval shall have effect from **01.04.2008 to 31-03-2011** subject to all other provisions of the I.T. Act, 1961 as applicable.

- i) The receipts issued to the donors should bear the number and the date of this order and the period of validity.
- ii) The Society shall submit the statement of income and expenditure for the year ended on 31.03.2009 and subsequent year(s) within the prescribed time before the prescribed authority.
- iii) Requests for renewals should be made to the Director of Income Tax (Exemp), Hyderabad, within three months from the expiry of the period mentioned in para 2 above with statements of Income and Expenditure account, Balance Sheet and Audit Report in Form No.10B, wherever the income exceeds Rs.50,000/- and a Certificate signed by all the Office bearers to the effect that the Society did not infringe the provisions of Sec.13(1) of the I.T. Act, 1961 from the date of inception till date.
- iv) The society seeking exemption shall fulfill the conditions mentioned in sub-section 5 of Section 80G of I.T. Act, 1961.

J.K. Hota

(J.K. HOTA)
Director of Income Tax (Exemptions)
Hyderabad

Copy to:

**THE PLANT PROTECTION ASSOCIATION OF INDIA,
NBPGR, Regional Station, Rajendra nagar,
Hyderabad -500 030.**

Copy to the DDIT (E), Hyderabad.



Office of the
Director of Incometax(Exemptions)
Hyderabad

F.No.DIT(E)/80G Confirmations/10-11

Date: 29.3.2011

To

Plant Protection Association of India
NBPGR - Regional Station
Rajendranagar
Hyderabad - 30

Sir,

Sub: Granting of an approval or for continuance thereof to an institution or a Trust (referred to u/s 80G(2) and 5 of IT Act 1961 - Confirmation - reg

Ref: Your office letter dated 24.2.2011.

With reference to your letter cited above this is to inform you that an amendment was made to Section 80G(5)(vi) through Finance Act (No.2) 2009 wherein it is confirmed that the existing approvals expiring on or after 1.10.2009 shall be deemed to have been extended in perpetuity unless specifically withdrawn.

In view of the same, the earlier renewal upto 31.3.2011 is deemed to have been on force subject to the conditions specified in the previous order and should not hit by the proviso to Section 2 (15) of the IT Act, 1961.




(K.K. TRIPATHY)
Director of Incometax(Exemptions)
Hyderabad